ANSWER KEY & MARKING SCHEME SET 1

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(d)** a writ petition in the High Court or Supreme Court	Articles 226 and 32
2	**(a)** rule of law	Principle of equality
3	**(c)** enforcing equality and religious freedom	Constitutional duty
4	**(c)** PIL	Relaxed standing
5	**(d)** settling a private property dispute	PIL is for public causes
6	**(a)** all people must be able to approach it easily	Access to justice
7	**(d)** Article 131, original jurisdiction	Original jurisdiction
8	**(c)** Article 141 gives it the force of law	Precedent
9	**(a)** Both A and R are true and R is the correct explanation of A.	R is the key requirement of a fair process.
10	**(b)** Both A and R are true but R is not the correct explanation of A.	Both are true but separate facts.

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Misuse for publicity (1); Overburdens courts (1).	1+1
12	No court fee (1); Informal (1).	1+1
13	Not suited to democracy (1); Conflict with rights (1).	1+1
14	Checks unconstitutional laws (1); Protects rights (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Public causes (1); Voice for the marginalised (1); Risk of misuse (1).	1+1+1
16	Judges shortage (1); Procedural delays (1); ADR and technology (1).	1+1+1
17	NGT (1); PIL on pollution (1); Orders to authorities (1).	1+1+1
	OR: Laws were legal but unjust (1); Protest changed them (1); Rights must be protected (1).	1+1+1
18	Compromise (1); Low cost (1); Quick closure (1).	1+1+1
	OR: Fills gaps (1); Protects rights (1); May cross into legislation (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	(i) Criminal Tribes Act of 1871 (1). (ii) Freedom of the Indian-language press (1). (iii) South Africa (1). (iv) Laws can themselves be unfair or discriminatory; justice also requires fairness and equality, which courts protect (2).	1+1+1+2
20	Article 32 (1); Standing relaxed (1); Hingorani case (1); Vishaka (1); Limits (1).	1+1+1+1+1
	OR: Impartiality (1); Representation (1); Ethics (1); Legal aid (1); Public trust (1).	1+1+1+1+1

Mistakes to avoid:

- Saying that courts make laws; the legislature makes laws, the executive implements them and the judiciary interprets them and settles disputes.
- Mixing Article 32 (Supreme Court) with Article 226 (High Courts) for writs.
- Writing the retirement ages the other way round; Supreme Court judges retire at 65 and High Court judges at 62.
- Confusing substantive justice (fairness of the outcome) with procedural justice (fairness of the process, each side is heard).
- Dating the Supreme Court to 1947; it came into existence on 26 January 1950.
- Confusing Lok Adalat (settlement by compromise) with mediation (a neutral third party helps the parties agree) and with a court judgement.

Evaluator's note: Award step marks as shown; accept any correct alternative method. In internal-choice questions, evaluate only the option attempted. Deduct up to ½ mark for missing units or figures where required.

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ANSWER KEY & MARKING SCHEME SET 2

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(d)** more judges and fast-track courts	Reforms
2	**(d)** it passes an order to do complete justice	Extraordinary power
3	**(c)** mediation or Lok Adalat	ADR
4	**(c)** appeal to the Supreme Court	Hierarchy
5	**(c)** It gives courts a basis for judicial review	Reference point
6	**(a)** pollution by a factory	Environmental disputes
7	**(d)** long detention of undertrials	Right to speedy trial
8	**(b)** consumer commission	A quasi-judicial forum
9	**(c)** A is true but R is false.	A is true. R is false: Article 226 gives writ powers to High Courts.
10	**(d)** A is false but R is true.	A is false and R is true.

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Transparency (1); Allows appeal (1).	1+1
12	Equality in access (1); Protects poor (1).	1+1
13	Lower courts follow (1); Similar cases treated alike (1).	1+1
14	e-filing (1); Virtual hearings (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Binding decisions (1); Consistency (1); Evolving law (1).	1+1+1
16	Local justice (1); Speed (1); Challenges of infrastructure (1).	1+1+1
17	Equality (1); Access (1); Awareness gaps (1).	1+1+1
	OR: Appointment (1); Tenure and salary (1); Removal procedure (1).	1+1+1
18	Corrects error (1); Delays (1); Final authority (1).	1+1+1
	OR: Parliament makes law (1); Courts interpret (1); Check unconstitutional acts (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	(i) Supreme Court (1). (ii) 25 (1). (iii) Subordinate courts (1). (iv) Original jurisdiction (Centre-state disputes) and advisory jurisdiction (President's reference under Article 143) (2).	1+1+1+2
20	Criminal Tribes Act (1); Press Act (1); Rights (1); Repeal (1); New criminal laws (1).	1+1+1+1+1
	OR: Women (1); Prisoners (1); Children (1); Minorities (1); Examples (1).	1+1+1+1+1

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ANSWER KEY & MARKING SCHEME SET 3

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(b)** transparency and fairness of process	Open courts
2	**(c)** independence of the judiciary	Fair justice at risk
3	**(a)** each organ has distinct functions with checks on others	Constitutional design
4	**(a)** a poor person cannot afford a lawyer	Legal aid needed
5	**(c)** a person is punished without being heard	Violates natural justice
6	**(a)** personal liberty and fair process	Constitutional safeguard
7	**(d)** specialised subject and expert members	Technical bodies
8	**(a)** an innocent person is punished after a fair trial	Wrong outcome
9	**(a)** Both A and R are true and R is the correct explanation of A.	R gives the constitutional basis for A.
10	**(b)** Both A and R are true but R is not the correct explanation of A.	Both are true but unrelated.

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Constitution guarantees them (1); Enforce rights directly (1).	1+1
12	Delay harms accused and victim (1); Part of fair process (1).	1+1
13	Subject-specific (1); Expert members (1).	1+1
14	Prevents misuse (1); Balance of organs (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Article 32 (1); Article 226 (1); Wider scope of High Courts (1).	1+1+1
16	Parties (1); Standards of proof (1); Remedies (1).	1+1+1
17	Court guidelines (1); Workplace rules (1); Law enacted in 2013 (1).	1+1+1
	OR: Hears complaints (1); Issues writs (1); Strikes down violations (1).	1+1+1
18	Presumption of innocence (1); Legal counsel (1); Right to be heard (1).	1+1+1
	OR: Uniform law (1); Easy appeals (1); Final authority (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	(i) Public Interest Litigation (1). (ii) Kapila Hingorani (1). (iii) Sexual harassment at the workplace (1). (iv) Any person or group can approach the court for those who cannot afford it, so even disadvantaged people get justice (2).	1+1+1+2
20	Fair trial (1); Outcome (1); Errors (1); Appeal (1); Trust (1).	1+1+1+1+1
	OR: Complaint (1); Article 226 (1); Article 32 (1); Legal aid (1); Appeal (1).	1+1+1+1+1

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